

requirements of CRC 3.1324(b). CRC 3.1324(b) requires the filing of a separate declaration that specifies “(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier.” The supporting declaration fails to address the effect of the amendments, when the facts giving rise to the amendments were discovered, and the reasons the request for amendment was not made earlier. The December 23, 2026, CPRA request was submitted over 6 months ago. No explanation has been provided regarding why leave to add the December CPRA request was not filed sooner.

CCP § 464. “The plaintiff and defendant, respectively, may be allowed, on motion, to make a supplemental complaint or answer, alleging facts material to the case occurring after the former complaint or answer.” CCP § 464. While both the December CPRA request and June 12, 2026, fire occurred after the filing of the original Petition, the motion fails to explain how each event is factually material to the November 2025 CRPA request.

The motion is **DENIED**. Petitioner provided a proposed Order that will be modified to reflect the Court’s ruling.

MEGASTAR FINANCIAL CORP VS. TURNER, ET AL.

CASE NUMBER: 25CV-0207787

Tentative Ruling on Review: This matter is on calendar for review regarding status of default. Default was entered as to Defendant Tessa A. Garrett on August 12, 2025. Default was entered as to Defendant Kyle K. R. Turner on July 8, 2026. Defendant The Secretary of Housing and Urban Development stipulated to a judgment on July 18, 2025. The matter is continued to **Monday, September 21, 2026 at 9:00 a.m. in Department 63** for status of default judgment. If a judgment is not on file prior to the next hearing, Plaintiff is ordered to file a status statement no less than five court days prior to the hearing explain the delay. **No appearance is necessary on today’s calendar.**

PEOPLE OF THE STATE OF CALIFORNIA VS. HIGHFILL

CASE NUMBER: 25CV-0208672

Tentative Ruling on Motion to Set Aside Summary Judgment Discharge Forfeiture and Exonerate Bail: Defendant United States Fire Insurance moves to set aside summary judgment, discharge forfeiture, and exonerate bail. No opposition has been filed. Defendant’s request for judicial notice is GRANTED.

Defendant alleges two grounds for the exoneration of the bond. First, they allege that the criminal defendant was referred to probation and by operation of law that the bond was exonerated pursuant to Penal Code § 1195 and *People v. Safety National Insurance Co.* (2007) 150 Cal.App.4th 11. The moving party is incorrect, as the minute order from January 14, 2025 does not show a referral to probation but rather that there was a delayed sentencing. Defendant has failed to establish grounds for exoneration pursuant to Penal Code § 1195.

Next, Defendant argues that Court failed to forfeit the bond in open court. Penal Code § 1305(a) requires the bond to be forfeited in open court. The February 13, 2025 minute order indicates the bond was forfeited. However, the court transcript shows that the judge failed to declare the bond forfeited in open court. Based on the foregoing, the Court finds that exoneration is warranted pursuant to Penal Code § 1305(a) and *People v. Amwest Surety Ins.* (2004) 125 Cal.App.4th 547, 550.

The motion is **GRANTED**. A proposed order was lodged with the Court and will be executed.

PERRY VS. FARMER

CASE NUMBER: 26CH-0209631

Tentative Ruling on Motion for Attorney’s Fees: Respondent Mark Farmer moves for recovery of attorney’s fees. The motion was originally calendared for hearing on July 6, 2026, but the hearing was continued to today’s date. Petitioner Candilyn Perry was timely served with the motion by mail. On July 22, 2026, Petitioner, now

represented by counsel, filed an opposition to respondent's motion for attorney's fees. This opposition was filed late. Because the Opposition does not change the Court's tentative ruling, the Court will consider the late-filed Opposition.

CCP § 527.6 governs civil restraining orders. Subsection (s) provides that the prevailing party in an action brought pursuant to this section may be awarded court costs and attorney's fees, if any. CCP § 527.6(s). "[A] prevailing defendant can recover attorney fees in an action for injunctive relief against harassment, even if the action was brought in good faith and is not frivolous, if the trial court decides in its discretion to award such fees." *Krug v. Maschmeier* (2009) 172 Cal. App. 4th 796, 798. "The recovery of attorney fees under subdivision (s) of section 527.6 is committed to the trial court's discretion." *Wash v. Banda-Wash* (2025) 108 Cal. App. 5th 561, 568. In determining the amount of attorney's fees to which a litigant is entitled, an experienced trial judge is the best judge of the value of professional services rendered in his or her court. *Granberry v. Islay Investments* (1995) 9 Cal. 4th 738, 752.

Respondent is the prevailing party here, which means the Court has discretion to award fees and costs. The Court recalls the trial in this matter and exercises its discretion to award fees and costs. Counsel for Respondent requests \$7,640. However, the declaration of counsel is insufficient to warrant the amount requested. Timothy M. Prentiss II declared that "I incurred attorney's fees as follows" and goes on to list 5 hours of clerical work billed at \$150 per hour, 18.2 hours of paralegal work billed at \$250 per hour, and 5.5 hours of legal work with 2.7 hours being billed at \$400 per hour and 2.8 hours being billed at \$425 per hour. While it is possible to include paralegal fees in an award of attorney fees, clerical or administrative tasks are not recoverable. *Collins v. City of Los Angeles* (2012) 205 Cal. App. 4th 140. No billing records have been provided to support the paralegal or attorney time. No evidence has been provided to support the hourly rates requested. Therefore, the Court is only able to award attorney's fees based on what the Court can determine from the file.

The trial in this matter was March 19, 2026. The trial started at 1:30 p.m. and court was adjourned at 2:59 p.m. The trial was heard at the same time as an Order to Show Cause Re: Sanctions that issued to Respondent and counsel for failure to file CH-800 as ordered on February 9, 2026. Respondent appeared on one prior occasion to trial which was trial readiness on February 2, 2026. The only other appearances were post trial when Respondent appeared on April 20, 2026 and June 1, 2026 for hearing on prior Motions for Attorney's Fees that were denied without prejudice for being untimely filed. Other than motions seeking attorney's fees, Respondent has only filed the CH-120 and CH-800. Based on the evidence before the Court, the Court finds that \$2,000 is a reasonable sum for attorney's fees in this matter. This is comprised of five hours of attorney time at the rate of \$400 per hour. The Court declines to award any paralegal time as sufficient evidence has not been provided.

The motion is **GRANTED** and fees will be awarded to Respondent in the amount of \$2,000. Respondent did not provide a proposed Order as required by Local Rule of Court 5.17(D). Respondent is ordered to submit a proposed order consistent with the Court's ruling here.

WELLS FARGO BANK, NA VS. BOOTH
CASE NUMBER: 25CVG-00794

Tentative Ruling on Motion for Order that Matters in Requests for Admission of Truth of Facts be Deemed Admitted: Plaintiff Wells Fargo Bank. seeks an order deeming the truth of the matters specified in Plaintiff's Requests for Admission, Set One to be admitted by Defendant Donald L. Booth. Despite being timely notice with the motion, Defendant did not file an Opposition.

When a party fails to respond to Requests for Admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Plaintiff's moving